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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

PLAINTIFF'S REPLY TO ONE SOURCE TECHNOLOGY LLC D/B/A ASURINT'S OPPOSITION TO MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.
Ctrm: 5D
Judge: Hon. Serena R. Murillo

[Filed concurrently with Declaration of Roberto Sandoval Carrillo; Evidentiary Objections to Declaration of Karimah Lamar.]

I. INTRODUCTION

Asurint's Opposition does not identify a genuine Rule 23 defect.[1] Instead, it largely sets forth merits defenses and *ad hominem* attacks on Plaintiff as purported class-certification arguments. But Rule 23 asks whether Plaintiff's claim under the FCRA is cohesive enough to be tried through common proof—not whether Asurint has assembled inflammatory facts it hopes to use against Plaintiff. With respect to the FCRA Class certification should be readily granted because: (i) Plaintiff is typical of the group he seeks to represent – those "persons in California who applied for employment with Vons and on whom Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Website that was used by Vons and/or Asurint for employment decisions"; (ii) Plaintiff's claim is common and predominates over any individualized issues because Asurint sent the FCRA 613 notice, Pre-Adverse Action Notice, and Adverse Action Notice on behalf of Vons, which show that Asurint furnished background reports with SOR information to Vons, knowing that Vons was using them in violation of the Megan's Law. Vons has already identified the members of the FCRA Class, and the only thing left is to determine whether or not Asurint violated the FCRA with respect to the FCRA Class members by furnishing background reports with SOR information to Vons knowing they would be used in violation of the Megan's Law. Accordingly, Plaintiff respectfully requests the Court grant class certification of the FCRA Class.

II. ARGUMENT

A. Asurint Improperly Conflates Rule 23 With the Merits.

A class-certification motion is not a dress rehearsal for a merits trial. The Court must conduct a rigorous Rule 23 analysis, but it may not refuse certification merely because Vons has identified merits defenses that it believes will help it later. *Amgen Inc. v. Connecticut Ret. Plans & Tr. Funds*, 568 U.S. 455, 466 (2013) ("Rule 23 grants courts no license to engage in free-ranging merits inquiries at the certification stage. Merits questions may be considered to

[1] Plaintiff hereby incorporates by reference its Reply to the Opposition to Motion for Class Certification filed by Vons.

the extent—but only to the extent—that they are relevant to determining whether the Rule 23 prerequisites for class certification are satisfied."); *Olean Wholesale Grocery Coop., Inc. v. Bumble Bee Foods LLC*, 31 F.4th 651, 667 (9th Cir. 2022) ("[A] district court cannot decline certification merely because it considers plaintiffs' evidence relating to the common question to be unpersuasive and unlikely to succeed in carrying the plaintiffs' burden of proof on that issue.") (*citing Tyson Foods*, 577 U.S. at 455).

That principle matters here because the vast majority of the Opposition consists of merits arguments masquerading as Rule 23 arguments. Asurint argues that it obtained "a certification from end-users of consumer reports, such as Vons, that 'information from the consumer report will not be used in violation of any applicable Federal or State equal employment opportunity law or regulation.'" This is irrelevant to class certification. Even assuming *arguendo* Vons provided the purported certification, a trier of fact will determine whether or not Asurint's furnishing of the background reports with SOR information was unlawful when it knew that Vons would rely on the SOR information for employment purposes. What is more, this merits defense applies commonly to all FCRA Class members, and therefore does not undermine commonality or predominance.

B. The FCRA Class Is Adequately Defined And Ascertainable

Although not required by Rule 23, courts have required a showing that the class to be certified is ascertainable. *See Walker v. Life Ins. Co. of the Sw.,* No. CV 10-9198 JVS RNBX, 2012 WL 7170602, at *18 (C.D. Cal. Nov. 9, 2012). "Ascertainability requires that the class definition be 'definite enough so that it is administratively feasible for the court to ascertain whether an individual is a member' before trial, and by reference to 'objective criteria.'" *Ehretv. Uber Techs., Inc.,* 148 F. Supp. 3d 884, 889 (N.D. Cal. 2015) (citation omitted). A class definition that relies on objective, verifiable criteria satisfies the ascertainability requirement. *See Keegan v. Am. Honda Motor Co.,* 284 F.R.D. 504, 521 (C.D. Cal. 2012). Notably, the Ninth Circuit has held that in the context of a consumer class action, that plaintiffs not only do not have to identify class members as a prerequisite to meeting their burden under Rule 23, but also do not have to present a feasible methodology

for doing so, as manageability issues are best reserved post-certification. *Briseno v. ConAgra Foods, Inc.*, 844 F.3d1121, 1123, 1124-25 ,1132-33 (9th Cir. 2017) ("the language of Rule 23 neither provides nor implies that demonstrating an administratively feasible way to identify class members is a prerequisite to class certification."); *MacDougall v. Am. Honda Motor Co.*, 2020 WL 5583534, at *3 n.1 (C.D. Cal. 2020) ("While some circuits have adopted an 'ascertainability' prerequisite to certification, the Ninth Circuit has not."); *Ahlman v. Barnes*, 445 F. Supp. 3d 671, 687 n.9 (C.D. Cal. 2020) ("The Ninth Circuit does not recognize an ascertainability requirement.").

Here, class membership may be readily determined by objective criteria, namely, (i) persons in California who applied for employment with Vons; (ii) on whom Asurint conducted a background search and furnished a consumer report containing SOR information; and (iii) that was used by Vons for employment decisions. Such objective information can be readily determined using Vons' and Asurint's records. In facts, Vons, through Asurint's records, has already identified at least 43 members of the FCRA Class. Declaration of Raymond Y. Kim in support of Motion for Class Certification, Dkt. No. 55-1 ("Kim Decl."), ¶¶ 15-16. Toni North, Vons' corporate witness, testified that applicants with SOR information in their background reports are categorized with the "Highest Crime" of "Sex Offender," and that she is not aware of a single person with "Highest Crime" of "Sex Offender" hired by Vons. Kim Decl., ¶ 16, Ex. 4. This also shows that Vons has a common practice of denying applicants with SOR information in their background reports. Vons identified 43 applicants who applied for employment, had background reports with SOR information, and were denied employment as a result. Kim Decl. ¶ 15. Asurint sent each of these 43 applicants the Adverse Action Notice stating that Vons' decision to withdraw its conditional employment offer was "influenced in whole or in part by" the SOR information in their background reports. Declaration of Roberto Sandoval Carrillo in support of Class Certification, Dkt. No. 55-2 ("Carrillo Decl."), ¶ 16, Ex. I; Kim Decl., ¶¶ 18-19. Asurint, by virtue of its Services Agreement with Vons, and the FCRA 613 notice, Pre-Adverse Action Notice, and Adverse Action Notice it sends on behalf of Vons, knew the background reports

were being used for an unlawful purpose. Notably, in the Opposition Asurint does not dispute any of these facts. Asurint argues that "[w]hile Asurint's records may reflect that a report was furnished and what information it contained, they do not—and cannot—show how Vons used that information, whether it was relied upon, or whether any reliance was lawful." Asurint Opp., 13:21-26. To the contrary, the FCRA 613 notice, Pre-Adverse Action Notice, and Adverse Action Notice Asurint sent on behalf of Vons clearly shows how Vons used the SOR information.

The "FCRA 613" notices Asurint sent on behalf of Vons, as "required by law," shows that Vons uses the SOR information from background reports for employment purposes:

> The purpose of this letter is to notify you that Asurint, a consumer reporting agency, is reporting criminal or other public record information that may be adverse about you to:
>
> Vons….
>
> The above listed employer/agency has certified that ***it is using such public record information to determine your eligibility for employment***[.]

Carrillo Decl., Ex. C (emphasis added); Kim Decl., Ex. 4 (North Dep., 88:13-89:2). Similarly, the Pre-Adverse Action Notice Asurint sent on behalf of Vons shows that it uses the SOR information from background reports for employment purposes:

> *In evaluating your conditional offer of employment*, transfer or promotion with Vons/Pavilions, *we received the enclosed screening report* that we procured with your authorization from Asurint... **We have identified the following convictions on your report to be job-related:**
>
> Sex Offender

Carrillo Decl., ¶ 12, Ex. E (bold in original; italics added); Kim Decl., (North Dep., 106:19-107:19). What is more, as discussed above, the Adverse Action Notice, received by Plaintiff and the Megan's Law class members states that Vons' decision to withdraw the conditional offer of employment "was influenced in whole or in part by a pre-employment screening

report prepared by Asurint" and the SOR information contained therein. Carrillo Decl., ¶ 16, Ex. I.

And the Adverse Action Notice Asurint sent on behalf of Vons states that the decision to withdraw the conditional employment offer was "influenced in whole or in part by" the SOR information in their background reports. In the Adverse Action Notices, Asurint states in pertinent part:

> Dear Applicant,
>
> We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.
>
> This decision was ***influenced in whole or in part by a pre-employment screening report*** prepared by Asurint...
>
> We have identified ***the following convictions on your report to be job-related:***
>
> ***Sex Offender***
>
> ***The decision to withdrawal*** [sic] the employment offer ***is based on the fact that one or more convictions were found during the pre-employment screening process***[.]

Kim Decl., Dkt. No. 55-1, ¶ 18; Carrillo Decl., Dkt. No. 55-2, ¶ 16, Ex. I (emphasis added).

Ms. North testified that candidates with SOR information in their background reports receive the FCRA 613 notice, Pre-Adverse Action notice, and Adverse Action Notice, because that is the California "format" Vons uses:

> A. Anyone who fails is going to get the pre-adverse action and then the FCRA 613 in their consumer report. If they remain a fail after the waiting period, they're going to get the adverse action.
>
> Q. And if their highest crime is sex offender, it'll state in the adverse action notice "sex offender"?
>
> A. Yes, because that's the format we have to follow in California.

Kim Decl., Ex. 4, Toni North Dep., at 114:23-116:10; 145:16-146:8.

Lastly, Asurint argues that the FCRA Class definition is an impermissible fail-safe class. Asurint asserts, "Plaintiff's FCRA Class definition hinges on whether sex-offender registry information from the Megan's Law website was *unlawfully used* by Vons for employment decisions." Asurint Opp., at 14:14-17. Not so. Asurint's liability is also based on its knowledge of the Vons' unlawful use of the background reports in violation of the Megan's Law. In any event, as the Ninth Circuit explained, "ultimately, the problem of a potentially 'over-inclusive' class 'can and often should be solved by refining the class definition rather than by flatly denying class certification on that basis.'" *Olean Wholesale Grocery Coop., Inc. v. Bumble Bee Foods LLC*, 31 F.4th 651, 669, n.14 (9th Cir. 2022) (*citing Messner v. Northshore Univ. HealthSystem*, 669 F.3d 802, 825 (7th Cir. 2012)).

C. Plaintiff Satisfies Numerosity

As explained above, the notices Asurint sent on behalf of Vons to the Megan's Law Class members establish that Asurint knew Vons uses SOR information in the background reports to make employment decisions. According to Ms. North, the "FCRA 613" notices were sent to Megan's Law Class members as "required by law"; these notices shows that Vons uses the SOR information from Asurint's background reports for employment purposes. Carrillo Decl., Ex. C ("The above listed employer/agency has certified that ***it is using such public record information to determine your eligibility for employment***[.]") (emphasis added); Kim Decl., Ex. 4 (North Dep., 88:13-89:2). Similarly, the Pre-Adverse Action Notice from Asurint on Vons' behalf shows that Vons uses SOR information from background reports for employment purposes. Carrillo Decl., ¶ 12, Ex. E ("In evaluating your conditional offer of employment… we received the enclosed screening report... **We have identified the following convictions on your report to be job-related:** Sex Offender") (bold in original); Kim Decl., (North Dep., 106:19-107:19). And as discussed above, the Adverse Action Notice received by Plaintiff and the Megan's Law class members states that Vons' decision to withdraw the conditional offer of employment "was influenced in whole or in part by a pre-employment screening report prepared by Asurint" and the SOR information contained therein. Carrillo Decl., ¶ 16, Ex. I. Asurint sent these notices on behalf of Vons to

at least 43 candidates who had received conditional offers of employment. Thus, numerosity is satisfied.

D. Commonality And Predominance Is Satisfied

The FCRA Class presents a straightforward common question that predominates over any individualized issue: whether Asurint conducted a background search and furnished a consumer report containing SOR information from the Megan's Law Website knowing that the information would be unlawfully used by Vons for employment decisions.

This common question governs Plaintiff and FCRA Class members' FCRA claim. Asurint argues individualized issues arise in resolving Vons' liability under the Megan's Law. But Vons has already conceded that it does not hire applicants with SOR information in their background reports. Vons identified approximately 43 applicants who applied for employment, had background reports with SOR information provided by Asurint, and were denied employment as a result. Kim Decl. ¶ 15. Each of these 43 applicants received an Adverse Action Notice from Asurint. Thus, commonality and predominance with respect to the FCRA Class is easily satisfied.

E. Plaintiff Is Typical Of The FCRA Class

"Typicality is satisfied when the representative's claims are reasonably coextensive with those of absent class members, even if they are not substantially identical." *DZ Rsrv. v. Meta Platforms, Inc.,* 96 F.4th 1223, 1238 (9th Cir. 2024), cert. denied, 145 S. Ct. 1051 (2025). A unique defense defeats typicality only when there is a danger that the named plaintiff will become preoccupied with that defense to the detriment of the class. *Id.* at 1238-39. Asurint argues Plaintiff is atypical because he disclosed his conviction. Opp. at 19:19-21. Asurint's argument is irrelevant here. Whether or not Plaintiff disclosed his conviction does not exculpate Vons from liability for violating the Megan's Law or Asurint from violating the FCRA knowing that Vons was using the background reports for unlawful purposes . The Megan's Law does not require the SOR information be the but-for cause of the employment decision. Cal. Penal Code § 290.46(j)(2)(E) (prohibiting "use *of any information* that is disclosed" in Megan's Law Website). The plain language of the statute provides that the "use

of any" SOR information in employment decisions is prohibited, plain and simple. The record shows that Vons had a common practice of using SOR information in denying employment to Plaintiff and more than 40 other persons, and Asurint had knowledge of this. Kim Decl., ¶ 14, Ex. 4. Indeed, all Megan's Law Class members received the Adverse Action Notices from Vons based on Vons' use of SOR information that was obtained from Asurint. Specifically, after receiving a conditional job offer from Vons members of the Megan's Law Class, including Plaintiff, received the Adverse Action Notice from Asurint stating that Vons' decision to withdraw its conditional employment offer was "influenced in whole or in part by" the SOR information in their background reports. Carrillo Decl., ¶ 16, Ex. I; Kim Decl., ¶ 18. The Megan's Law claim is not defeated merely because Plaintiff truthfully disclosed his conviction history; the Adverse Action Notice itself states the decision was influenced "in whole or in part" by the report and identified "Sex Offender" as the conviction. Carrillo Decl., ¶ 16 and Ex. I. Indeed, Ms. North, Vons' corporate witness, testified that Vons "partially relied" on SOR information. Kim Decl., Dkt. No. 14, **Ex. 4**, North Dep., at 52:3-25; 54:2-25 ("Q. But you relied partially on Megan's Law information; is that right? A. Yes."). Thus, despite Plaintiff's truthful disclosure of his conviction, Plaintiff's claims are typical of the FCRA Class.

F. Plaintiff Will Adequately Represent The Class

See Section II.A of Plaintiff's Reply to Vons' Opposition to Motion for Class Certification, which Plaintiff incorporates herein by reference, and Declaration in support of Plaintiff's Reply, filed concurrently with this Reply.

G. The FCRA Class Should Be Certified For Injunctive Relief Under Rule 23(b)(2).

Rule 23(b)(2) applies when the defendant has acted on grounds generally applicable to the class, making final injunctive relief appropriate for the class as a whole. *Parsons*, 754 F.3d at 686-89. That standard is satisfied here. Plaintiff seeks uniform injunctive relief requiring "Asurint cease from furnishing consumer reports that include information from the Megan's Law Website *knowing* that such information will be used in violation of the law.".

Complaint, Prayer ¶ 8; Motion at 25-26. This injunction would apply equally to all class members and future applicants.

Contrary to Asurint's contention, whether SOR information may be disclosed is not the issue. Plaintiff does not claim that Asurint violated the Megan's Law by including SOR information in the background reports. Plaintiff alleges that Asurint violated the FCRA by issuing background reports to Vons knowing that they will be used for unlawful purposes, i.e. violating the Megan's Law. *Second*, whether or not the injunctive relief is tied to Section 1681b(b)(1) is inconsequential. Plaintiff alleges that Asurint's conduct is unlawful and unfair, and seeks an injunction and public injunctive relief under the UCL, Business and Professions Code § 17203. Complaint, ¶¶ 73, 74.c. Third, the proposed injunction will remedy Asurint's continuing misconduct. Asurint does not state that it has ceased issuing background reports to Vons containing SOR information. Until it does, the requested injunction will provide relief to every member of the class. This is precisely the type of prospective, policy-directed relief Rule 23(b)(2) is designed to address. *Parsons*, 754 F.3d at 688-89.

III. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court certify the FCRA Class under Rules 23(a), 23(b)(2), and 23(b)(3), appoint Plaintiff as class representative, and appoint Ray Kim Law, APC as class counsel.

Dated: March 25, 2026

RAY KIM LAW, APC

/s/ Raymond Y. Kim
Raymond Y. Kim
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Roberto Sandoval Carrillo